

Vinod Kumar Gupta v. State of U.P.

Allahabad High Court · Division Bench · 10 September 2018 · Writ-C No. 29498 of 2018 · **Writ disposed; Executive Engineer to consider clause 6.14 instalments; coercive recovery stayed one month.**

HEADNOTE

A consumer who accepted quantified electricity arrears in writing while seeking instalments, after a connection-number discrepancy was treated as a clerical correction, did not obtain quashing of the recovery citation. The High Court disposed of the writ by directing the Executive Engineer to consider an instalment application under paragraph 6.14 of the Electricity Supply Code, 2005 in accordance with law within one month, with a short stay of coercive steps.

FACTUAL SUMMARY

Vinod Kumar Gupta challenged a recovery citation dated 26 February 2018 for Rs. 18,37,465. He said his original connection was numbered 009050, whereas bills went against connection 015057, and representations for a corrected bill had gone unanswered. The Power Corporation said the 2013 connection number was a clerical error later corrected to 015057, a bill had since been sent, and on 8 May 2018 the petitioner had written to the Executive Engineer accepting the liability while seeking instalments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for outstanding dues

HOLDING

Where the connection number had been corrected, a bill issued, and the consumer had in writing accepted the quantified liability while praying for instalments, the Court did not quash the recovery citation. It disposed of the writ by directing the Executive Engineer to consider an instalment application under paragraph 6.14 and pass orders in accordance with law within one month of a certified copy being presented, and stayed coercive steps on the 26 February 2018 recovery for that period. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 A consumer who accepted quantified electricity arrears in writing while seeking instalments, after a connection-number discrepancy was treated as a clerical correction, did not obtain quashing of the recovery citation.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER INSTALMENTS SHOULD BE GRANTED, AND ON WHAT TERMS

Left to the Executive Engineer under paragraph 6.14 to pass orders in accordance with law. ¶ 1

NOT DECIDED — WHETHER MISMATCH BETWEEN CONNECTION NUMBERS 009050 AND 015057 VITIATED THE RECOVERY CITATION

The Court recorded the licensee's clerical-error explanation and the petitioner's written acceptance of liability, and neither quashed nor upheld the citation on that ground. ¶ 1

